

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

Index No.:

Date Purchased:

-----X
COURTNEY MERCHANT,**Plaintiff,****-against-****CITY OF NEW YORK and
DET. JAIPaul RAMDAT,****Defendants.**
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 14, 2024

Defendant's Address:

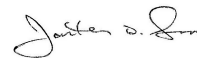
CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

DET. JAIPaul RAMDAT
C/O NYPD
One Police Plaza
New York, NY

Yours, etc.

SIEGLE & SIMS L.L.P.

By:



Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS****COURTNEY MERCHANT,****Index No.:****Plaintiff,****VERIFIED COMPLAINT****-against-****CITY OF NEW YORK and
DET. JAIPaul RAMDAT,****Defendants.**

To the above named Defendants:

Plaintiff, COURTNEY MERCHANT complaining of the defendants CITY OF NEW YORK (“CITY”) and DETECTIVE JAIPaul RAMDAT (“RAMDAT”) (collectively “defendants”) herein, by and through his attorneys SIEGLE & SIMS L.L.P., alleges the following upon information and belief:

1. At all times herein mentioned, defendant CITY was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

2. At all times herein mentioned, defendant RAMDAT was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.

3. At all times herein mentioned, plaintiff COURTNEY MERCHANT was a natural person who resided in the County of Nassau, State of New York.

4. On or about May 7, 2024, before the commencement of this action, a Notice of Claim on behalf of the plaintiff, COURTNEY MERCHANT was served in writing, sworn to by or on behalf of claimant/plaintiff, by delivering same by personal service upon CITY, which Notice of Claim set forth the name and post office address of claimant and claimant’s attorneys, the notice

of claim, the time when, the place where, and the manner in which the claims arose and the items of damages or injuries claimed to have been sustained as far as then practicable.

5. Said Notice of Claim was presented and delivered to CITY within ninety (90) days after the claims herein sued upon arose and before the commencement of this action.

6. On August 1, 2024, defendant CITY orally examined plaintiff COURTNEY MERCHANT and had an opportunity to physically examine COURTNEY MERCHANT.

7. This action was commenced within one year and ninety days after the causes of action herein arose, thirty (30) days have elapsed since the service of this claim or such claim was presented, and CITY has failed and refused to make an adjustment or payment of said claim.

8. On July 6, 2023, plaintiff was lawfully present in the vicinity of 14-64 Beach Channel Drive, County of Queens, City and State of New York, on the Nassau County/Queens County Border (also known as the vicinity of 2 Sheridan Blvd., County of Nassau, State of New York) and was not engaged in any wrongdoing.

9. On July 6, 2023, defendants arrested plaintiff.

10. Plaintiff was charged with Criminal Possession of a Weapon and related charges, and arraigned in the Criminal Court of the City of New York, Queens County on or about July 8, 2023.

11. In commencing the criminal action against plaintiff, defendants manufactured evidence, provided materially false information, and omitted material information regarding the circumstances surrounding plaintiff's arrest to members of the Queens County District Attorney's Office ("QCDAO")

12. As a result of the manufacture of evidence, and the material misrepresentations and omissions of defendants to members of the QCDAO, members of QCDAO presented the matter

to the grand jury.

13. Defendants made material misrepresentations to the grand jury.

14. The grand jury indicted plaintiff for various crimes.

15. On or about February 8, 2024, a member of the QCDAO moved to dismiss the indictment against plaintiff, plaintiff was released from custody, and the criminal matter was dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION
MALICIOUS PROSECUTION

16. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 15.

17. Defendants, their agents, servants and/or employees initiated a prosecution against plaintiff while having no probable cause to believe that plaintiff committed any crimes.

18. Defendants, their agents, servants and/or employees acted maliciously in initiating said prosecution against plaintiff.

19. The prosecution against plaintiff terminated in his favor.

20. As a result, plaintiff suffered physical and mental injuries, including prolonged incarceration against his will.

21. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(MALICIOUS PROSECUTION AGAINST DEFENDANT RAMDAT ONLY)

22. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 21.

23. Defendant RAMDAT, his agents, servants and/or employees, under color of state law, commenced a criminal prosecution against plaintiff.

24. The prosecution terminated in plaintiff's favor.

25. The prosecution of plaintiff was without probable cause and was unlikely to succeed.

26. Defendant RAMDAT his agents, servants and/or employees maliciously initiated the prosecution.

27. As a result of the prosecution, plaintiff suffered a deprivation of liberty in violation of the Fourth Amendment to the United States Constitution.

28. As a result of defendant RAMDAT's conduct, plaintiff's civil rights were violated and defendant RAMDAT is liable to plaintiff pursuant to 42 U.S.C. §1983.

29. Plaintiff suffered physical and mental injuries.

30. Plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO FIFTH & FOURTEENTH AMENDMENTS
(DUE PROCESS/FAIR TRIAL CLAIM AGAINST DEFENDANT RAMDAT ONLY)

31. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 30.

32. Defendant RAMDAT, his agents, servants and/or employees manufactured evidence and supplied it to prosecutors in furtherance of the prosecution of the criminal case against plaintiff.

33. Defendant RAMDAT, his agents, servants and/or employees conduct and actions toward plaintiff deprived plaintiff of liberty without due process of law in violation of the Fifth and Fourteenth Amendments to the United States Constitution.

34. The conduct and acts of defendant RAMDAT were performed under the color of state law.

35. As a result of defendant RAMDAT's conduct, plaintiff's civil rights were violated and defendant RAMDAT is liable to plaintiff pursuant to 42 U.S.C. §1983.

36. Plaintiff suffered physical and mental injuries.

37. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts which might otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
VIOLATION OF THE DUE PROCESS CLAUSE OF THE NEW YORK STATE
CONSTITUTION (Article 1, § 6)

38. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 37.

39. Defendants, their agents, servants and/or employees manufactured evidence and supplied it to prosecutors in furtherance of the prosecution of the criminal case against plaintiff.

40. Defendants, their agents, servants and/or employees conduct and actions toward plaintiff deprived plaintiff of liberty without due process of law in violation of Article 1, §6 of the New York State Constitution.

41. The conduct and acts of defendant RAMDAT were performed under the color of state law.

42. Plaintiff suffered physical and mental injuries.

43. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts which might otherwise have jurisdiction.

WHEREFORE, plaintiff COURTNEY MERCHANT demands judgment against defendants CITY OF NEW YORK, and DET. JAIPaul RAMDAT, in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action

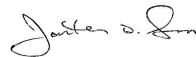
alleged, together with the costs and disbursements of this action, including punitive damages and attorneys fees.

Dated: New York, New York
August 14, 2024

Yours, etc.

SIEGLE & SIMS L.L.P.

By:



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